

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE LEWIS T. BABCOCK

Courtroom Deputy: Deborah Hansen
Court Reporter: Gwen Daniel

Date: November 1, 2010

Civil Case No. 07-cv-01355-LTB-MJW

Counsel:

UNITED STATES OF AMERICA FOR THE USE AND
BENEFIT OF SUN CONSTRUCTION COMPANY, INC.,
a Colorado corporation,

Curtis R. Henry
Jeffrey C. Culbertson

Plaintiff,

and

FIDELITY AND DEPOSIT COMPANY OF MARYLAND,
a Maryland corporation,

Patrick Q. Hustead
Connor L. Cantrell

Intervenor Plaintiff,

v.

TORIX GENERAL CONTRACTORS, LLC, a Colorado
limited liability company f/k/a Alliance General
Contractors, LLC; and
ST. ANDREWS/ALLIANCE JOINT VENTURE, a joint
venture,

Bret R. Gunnell
Matthew O. Stromquist

Defendants and Counterclaimants,

and

TRAVELERS CASUALTY AND SURETY COMPANY OF
AMERICA, a Connecticut corporation,

Bret R. Gunnell
Matthew O. Stromquist

Defendants.

COURTROOM MINUTES

JURY TRIAL - DAY ONE

09:00 a.m. Court in Session

Jury panel present

Court's opening remarks to the panel

09:35 Jury panel sworn voir dire

09:45 Voir dire commences

Juror 10017334 excused for cause

Voir dire continues

10:28 Bench conference

10:37 Voir dire completed

Plaintiff Sun Construction and Intervenor Plaintiff Fidelity and Deposit Company's challenges:

- 1) 100197086
- 2) 100200051
- 3) 100184878

Defendants and Counterclaimants Torix General Contractors and St. Andrews/Alliance Joint Venture's challenges:

- 1) 100175405
- 2) 100178372
- 3) 100172162

Jury sworn to try:

- 1) 100196211
- 2) 100170814
- 3) 100180434
- 4) 100188829
- 5) 100194492
- 6) 100184431
- 7) 100169772
- 8) 100200216
- 9) 100177758

Court's further comments

The Court advises the jury of the trial schedule: mid-morning recess of about 15 to 20 minutes, a noon recess of one hour, a mid-afternoon recess of about 15 minutes, and try to recess at 4:00 every day.

11:00 Court in Recess

11:30 Court in Session - without jury

Discussion/Argument - Pending Motions

- 1) Plaintiff's Motion in Limine [213] is **DENIED WITHOUT PREJUDICE** to be addressed at the appropriate time during trial if necessary.
- 2) Intervenor Plaintiff's Motion to Strike Expert Testimony of Richard Kerr Under Fed. R. Evid. 702 [215] shall be addressed at the appropriate time during trial.
- 3) Defendants' Motion in Limine to Exclude Evidence of Personal or Business Hardships Suffered by Sun Construction or its Principals [217] is **DENIED WITHOUT PREJUDICE** to be addressed at the appropriate time during trial if necessary.
- 4) Plaintiff's Motion to Compel Supplemental Mandatory Disclosures [225] is **DENIED**.
- 5) Intervenor Plaintiff's Cross Motion to Compel [233] is **DENIED**.

Court's further comments

ORDERED: All stipulated exhibits identified in the stipulated exhibit list, Doc No. 208, Pages 1 thru 27 are admitted into the evidence.

Court's further comments

Counsel confirm that the documents stipulated in the stipulated trial exhibit list are also the ones shown as stipulated in the Sun's exhibit list, the Joint Venture list and in F&D's list.

ORDERED: Rule 615 is invoked.

12:30 Court in Recess

01:00 Court in Session

01:07 Jury present

01:07 Opening Statement (by Mr. Henry)

EXHIBIT RECEIVED: Sun Exhibit No. 6

01:35 Opening Statement (by Mr. Gunnell)

02:10 Opening Statement (by Mr. Hustead)

02:55 Court in Recess

03:10 Court in Session

03:12 Opening Statement continued (by Mr. Hustead)

03:50 p.m. Court in Recess

Trial continued

Time: 5/35